

In the present case, however, Honda has brought a motion for summary adjudication, so the court does not have to assume that the plaintiff's allegations are true. Instead, the court must determine based on the admissible evidence presented by the parties whether there are any triable issues of disputed fact that support the plaintiff's fraud claim. Here, the undisputed evidence shows that American Honda had no duty to disclose the alleged defects in the subject vehicle because it had no direct buyer-seller relationship with the plaintiff at the time of the sale. In addition, there is no evidence that the dealership was acting as American Honda's agent at the time of the sale, so the court finds that American Honda had no duty to disclose the defects based on an agency relationship between American Honda and the dealership.

Plaintiff also argues that the fact that American Honda issued various warranties with the van means that it had the type of direct relationship with her that supports a fraudulent concealment claim. However, she cites to no authorities to support her contention. She only cites to *Dhital, supra*, which does not state that a manufacturer's issuance of a warranty with a new car is sufficient by itself to support a fraudulent concealment or inducement claim. *Dhital* merely held on demurrer that a plaintiff's complaint that alleged that the manufacturer issued a warranty and that the dealership was acting as the agent of the manufacturer at the time of the sale was sufficient to state a claim for fraudulent inducement. (*Id.* at p. 844.) Here, there is no evidence that the dealership was acting as the manufacturer's agent at the time of the sale, and plaintiff has not cited any authorities stating that the fact that manufacturer issued a warranty is enough, by itself, to support a fraudulent inducement claim.

Since American Honda did not have a duty to disclose the defects to plaintiff, it cannot be held liable for fraudulent inducement or concealment and the court intends to grant summary adjudication of the fifth cause of action in favor of American Honda.²

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: Img on 6-9-26.
(Judge's initials) (Date)

² Since the court finds that American Honda had no duty to disclose the defects to plaintiff, the court does not have to address defendant's alternative argument that plaintiff cannot show that she was damaged by the alleged fraud.

(29)

Tentative Ruling

Re: **McIntosh v. Knight**
Superior Court Case No. 21CECG01109

Hearing Date: June 11, 2026 (Dept. 403)

Motion: Motion to withdraw

Tentative Ruling:

To take off calendar, as no moving papers have been filed.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: img on 6-10-26
(Judge's initials) (Date)